DESIGN FOR APPROVAL

Damaged, defective and wrong goods: claims, returns and refunds

How the CHS Marketplace handles a buyer who receives goods that are damaged, faulty, wrong or missing, from the moment of complaint to the moment the money is settled. The buyer, the seller, the dispatch rider, the CHS centre, the admin, the Terms and the technology.

Prepared 18 Oct 2026 for the CHS owner and for review by the barrister. Everything in this document is a proposal. Where a decision belongs to the owner it is marked **DECISION**, with the recommended answer already filled in.

> **The short answer to your questions.** You were right: the platform does not have this. Today a buyer can press "Report a problem" and type a few words. That freezes the order and sends a note to the admin. Nothing else exists: no photos, no deadlines, no seller response, no choice of remedy (replace, partial refund, return), no role for the dispatch rider, no Terms. While preparing this I also found and fixed two real defects (section 2). The design below closes the whole gap.

1. The design in one page

1. **The escrow is the lever.** The buyer's money is already held by CHS. A claim simply keeps the affected part held until the matter is decided. Nobody has to chase anybody for money.
2. **Evidence beats words.** Photographs are taken at four moments (packing, handover, the door, after opening), each stamped with the server time. The earliest moment at which damage is proven decides who is at fault.
3. **Fault decides who pays.** Seller fault: the seller pays. Damage in transit while the goods are with CHS: CHS pays from a Delivery Protection Fund. Buyer's own doing or change of mind: the buyer bears it.
4. **Everyone has a deadline, and a fair result if they miss it.** Buyer 48 hours (visible damage) or 7 days (faults). Seller 48 hours to reply. CHS decides within 3 working days of complete evidence.
5. **The rider is a witness, not a user.** The rider waits while the buyer checks the goods, and gives a short statement through a no-login link. CHS centre staff inspect goods when they take them in.
6. **Money moves only when CHS approves it**, with the usual confirmation step, and every step is recorded with who and when. This follows your standing rules: no automatic payout, everything auditable.
7. **Both sides are protected.** The seller gets packing evidence, a right of reply, and protection against false claims. The buyer gets a guaranteed route, a decision, and a refund without being charged a fee for the seller's mistake.

2. What exists today (audit)

Area	Today	Gap
Reporting a problem	One text box. Needs 5 characters. Sets the order to "problem". Tells the admin.	No category, no photos, no item chosen, no "what I want", no deadline.
Telling the seller	Not done at all until today.	**Fixed today:** the seller is now notified. A proper seller response step is still missing.
After delivery	The screen offers no way to report a problem once an order is "delivered".	**Real gap:** a defect found on day 2 has no route at all.
Disputed order	The buyer still saw "I have received it". One tap would flip the order to delivered and tell the seller and admin that payment can be released.	**Real defect, fixed today** in the database and the buyer screen: an order with an open problem cannot be marked received.
Refund	Admin can refund a whole order line. It always deducts a bank processing fee (1.5% of CHS's commission plus ₦100, up to ₦2,000), even when the seller was at fault.	No partial refund. No replacement. No return of goods. Unfair fee when the seller is at fault.
Seller already paid part	Refund is refused with the message "recover it from the seller first".	No tool to recover it. No seller agreement allowing it.
Delivery charge	Refunded only if the order never left the seller. Terms say it is non-refundable once handed over.	Conflicts with a damaged-goods refund. Needs a carve-out.
The rider / courier / CHS centre	Their details are now recorded (new seller screens).	No way for them to confirm condition or give a

		statement. No inspection at the CHS centre.
Terms	Term 36 covers a seller who does not deliver. The marketplace delivery clause says a problem report keeps payment on hold.	Nothing on damaged, defective, wrong or missing goods, returns, windows, fault, or who pays.
The word "insurance"	Buyers are charged "delivery and transit insurance" (0.5% of the goods value).	CHS is not an insurer. This wording needs the barrister (section 16).

A comparable, working pattern already exists in the platform: the hotel disruption claims (host replies, guest answers, CHS decides, with deadlines). The marketplace process below deliberately follows the same shape, so the team and testers see one consistent logic.

3. Who does what

Person	Part in a claim
Buyer	Checks the goods before giving the delivery code. Reports in the app with photos and says what they want. Answers the seller's offer. Returns goods if asked. Confirms the replacement or the refund.
Seller	Packs properly and photographs the packing. Answers the claim in time: accept, offer something else, or dispute with evidence. Sends the replacement or collects the return. Accepts that CHS can recover refunds from what CHS holds for them (term in section 15).
Dispatch rider or driver	Does not need an account. Waits while the buyer checks the goods (up to 15 minutes). If the buyer refuses the goods, takes them back. Gives a short statement through a one-time link (section 6). If it is the seller's own rider, the seller is responsible for them.
Courier company	Waybill and tracking are recorded at dispatch. Its driver can give the same statement. Chosen by the seller, so the seller carries the risk (section 8).
CHS centre staff	Inspect goods when they are handed in and record the condition with a photo. Refuse goods that are visibly damaged. Inspect returned goods.
CHS admin	Reviews the evidence and decides fault and remedy. Approves every money movement. Larger amounts need a second approver (section 10).
CHS super admin	Second approver for large amounts. Handles the one review a party may ask for.
The system	Starts and stops the clocks, holds the money, sends every notification, writes the permanent record, and flags patterns (repeat claimants, repeat sellers).

4. Four moments of evidence (chain of custody)

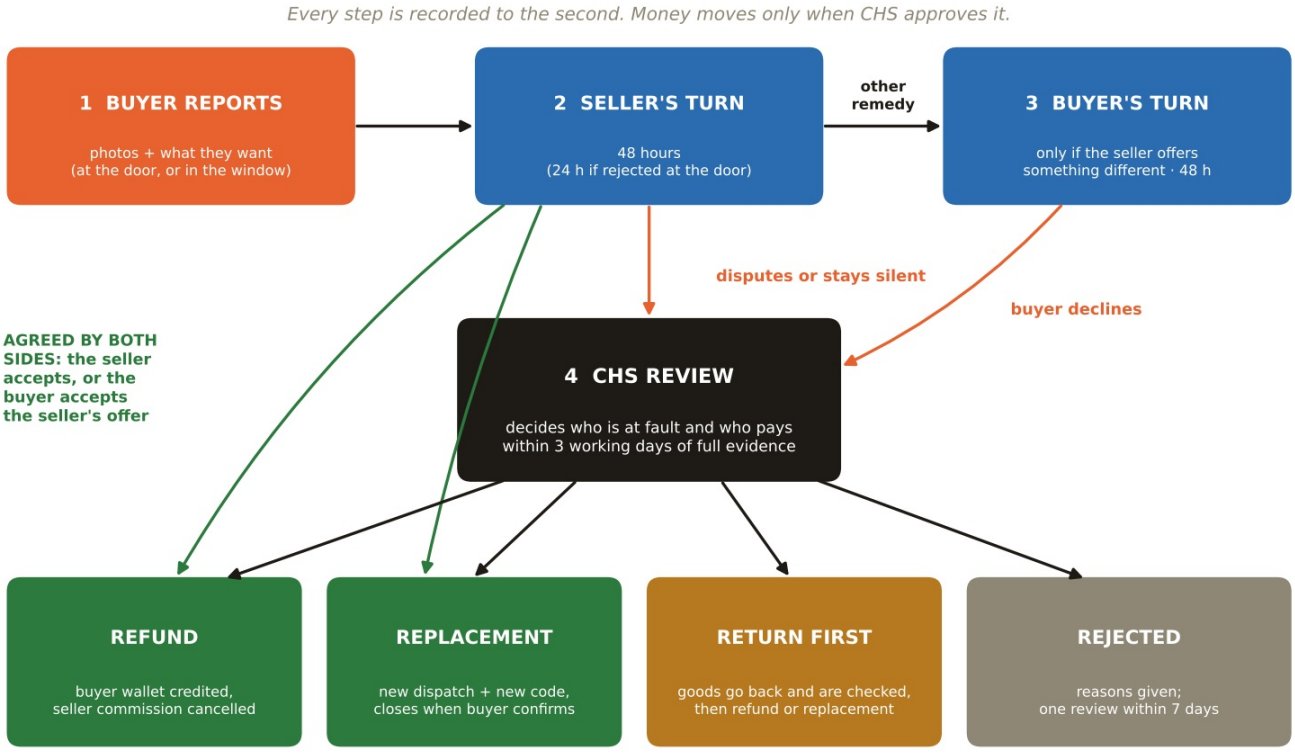


The earliest point at which damage is proven decides who pays.

Moment	What is recorded	Why it matters
A. Packed	When the seller taps "I have packed all items" they add 1 to 4 photos of the packed goods. Required for categories marked fragile (tiles, glass, sandcrete blocks, appliances, roofing sheets). Recommended for the rest.	Proves the goods left the seller intact and properly packed. Protects the honest seller.
B. Handed over	Own rider: name, phone, plate and the rider's statement link. Courier: company, waybill. CHS centre: staff inspect, record "OK / damaged / short" and take a photo before accepting. Visibly damaged goods are refused at the centre and the seller is told to fix it.	Separates seller damage from transit damage at the exact point custody changes.

C. At the door	The buyer opens and checks the goods **before** giving the 6-digit code. The rider waits up to 15 minutes. If anything is wrong the buyer does not give the code, taps "Refuse at the door" and photographs the problem in the app. The rider takes the goods back.	Today the code is the proof of delivery. Giving it too early is the biggest risk to the buyer. The app will say so clearly.
D. After opening	A buyer who found a hidden fault or later damage reports it with photos inside the window (48 hours visible, 7 days faults).	Catches defects that cannot be seen at the door. The code does not remove this right.

5. The claim, step by step



What the buyer does (about two minutes)

1. Open the order, tap **Report a problem**. This button also exists after delivery, for the whole window.
2. Choose what is wrong: **damaged on arrival**, **faulty / does not work**, **not what I ordered** (wrong item, size, colour, grade, brand), **items or quantity missing**, or **did not arrive**.
3. Choose which item(s) in the order, and how many units are affected (for example 30 of 450 blocks).
4. Add photos: at least two (the item and the packaging). For missing items, a short unboxing video is recommended. The app stamps each with the server time.
5. Say what they want: **replacement**, **refund**, or **partial refund**.
6. Tap **Send claim**. The app shows the deadlines and says the payment for those goods is now on hold.

What the seller sees and does

1. An alert, then the claim screen: the buyer's photos, the units affected, what the buyer wants, the packing photos they took (moment A), the rider statement if any, and the deadline.
2. **Accept** the remedy asked for, **offer something else** (for example a replacement instead of a refund, or a partial refund), or **dispute** with their own evidence and a reason.
3. If a replacement is agreed, the seller dispatches it through the same new order screen (carrier, rider, waybill). It gets its own delivery code.
4. If the goods are to come back, the seller sees the return code and the expected arrival.

What CHS does

1. Claims land in a new **Claims** queue under Oversight, with a timer on every claim, overdue ones in red.
2. For each claim the admin sees all evidence in time order: packing photos, intake inspection, rider statement, door refusal, buyer photos, both sides' messages.

3. The system suggests a likely outcome using the rules (for example "seller silent, buyer evidence complete: uphold"). The admin may follow or overrule, but must record the reason.
4. The decision screen asks for: **fault** (seller, transit, buyer, unclear), **remedy** (replacement, full refund, partial refund, return first, reject) and shows the exact money effect before anything moves.
5. The admin confirms with the normal payment confirmation step. Large amounts need a second approver.
6. Both parties receive a plain **Claim Decision Notice** (printable, PDF) with the reasons and the amounts.

6. The dispatch rider: how they come in

Riders and drivers will not have CHS accounts, so the design asks only for what a rider can realistically give, at the moment it matters.

When	What the rider does
At the door	The buyer is told in the app: "Open and check your goods before you give the code." The rider waits up to 15 minutes. If the buyer refuses the goods because of damage, missing or wrong items, the rider takes them back to the seller or the CHS centre. The refusal is recorded at that moment by the buyer, with photos.
Rider statement (no login)	When a claim involves transit or a door refusal, the claim screen gives the seller (and CHS) a **one-time link** to send to the rider or driver. It opens a short page with five questions: (1) "I collected these goods on [date] from [seller / CHS centre]"; (2) condition when collected: OK / damaged / not sure; (3) condition when handed to the buyer: OK / damaged / not sure; (4) did the buyer refuse or report damage at the door: yes / no; (5) what I saw, plus an optional photo; and a tick: "I confirm this is true." It records the time, the device and the link used. The link works once and expires after 7 days.
Courier company	The same link can go to the courier's driver or dispatcher. CHS may also request the courier's own delivery record.
CHS centre	Staff use their staff login, not a link. They record intake inspection (moment B) and the condition of any returned goods.
Returns	The rider who collects goods from the buyer enters a **return code** given to them by the buyer, and the same statement page records the condition at pickup.

> **How much a rider statement is worth.** It is evidence, not a verdict. A statement from the seller's own rider counts for less than one from a CHS centre or an independent courier, because the rider has a reason to side with the seller. If a rider refuses to give a statement, that is recorded, and CHS weighs it. The statement never replaces the buyer's photos.

> **Decision:** the rider's name and phone number are shown to the buyer, so the rider can find the address. They are a delivery contact only. The buyer's phone number is **not** given to the rider by the app. (Recommended: keep it this way.)

7. What kind of claim, and by when

Claim	Buyer must report within	Evidence needed
Damaged on arrival (broken, dented, torn, wet)	At the door, or 48 hours after delivery	2 or more photos: the damaged item, the packaging, the label.
Not what I ordered (wrong item, size, colour, grade, brand)	48 hours	Photos of the item and the listing details (the app attaches the listing as it was at purchase).
Items or quantity missing	48 hours	Photo of what arrived and the count. A short unboxing video recommended for multi-item orders.
Faulty or does not work (appliances, electricals, fittings)	7 days	Photo or video showing the fault, plus what was tried.
Did not arrive	3 days after a carrier reports delivery without the code; or 3 days after the promised date	The delivery record is checked. The code log decides most cases.
Change of mind	Not covered by default	Covered only if the seller marks the listing "accepts returns" and states the days. Return shipping paid by the buyer.

All numbers are settings that CHS can change in Settings without a new release (section 14). Where a category needs something different, the rule is shown on the listing **before** purchase. Suggested starting rules for building materials, to be confirmed with real sellers:

Category	Normal breakage allowance	Note
Sandcrete and concrete blocks	2%	The first 2% of units broken in transit are normal in the trade and not claimable. Beyond that, claimable. Photo count at the door.
Floor and wall tiles	3%	Shade or batch mismatch is a "not as described" claim if the listing promised one batch.
Cement	0%	Torn, wet or hardened bags are a claim. Photo of the bag and batch print.
Iron rods, roofing sheets, timber	0%	Wrong gauge, length or grade, bends and dents are claims. A measurement photo is expected.
Paint (opened or mixed), cut-to-size, custom-made	n/a	**Not returnable** once opened, mixed or cut, unless faulty. Faults still claimable with photos.

8. Who is at fault, and who pays

What happened	Who bears it	What the buyer gets
Seller at fault: defective from the factory, wrong item, short quantity, not as described, poor packing, damage visible in the seller's own packing photos	Seller	Replacement or refund of the price of the affected goods, CHS's commission from the buyer on them, and the delivery charge when the whole order fails. **No processing fee deducted.** Return costs paid by the seller.
Damaged in transit while with a CHS centre or on CHS-arranged delivery, goods properly packed and accepted at intake	CHS, from the Delivery Protection Fund, up to a limit per order	The same as above. The seller is paid for the goods by the Fund, so an honest seller is not punished.
Damaged in transit with the seller's own rider, or a courier the seller chose	Seller	The same as above. The seller chose and controls the carrier and may recover the loss from them.
Buyer's doing: damage after receipt, misuse, wrong order, change of mind (where returns are not offered)	Buyer	No refund. The claim is closed with reasons. The buyer keeps one review.
Unclear: no evidence on either side	Decided on the proof provided	The side that failed to give the evidence the rules asked for loses that point: a buyer with no photos can resubmit within the window; a seller with no packing photos for a fragile item faces the presumption that the damage was theirs.

> **DECISION: the Delivery Protection Fund.** The buyer's delivery payment includes 0.5% of the goods value (what the platform calls the "insurance" fee). That pays into the Fund. Honest warning: 0.5% will not cover transit breakage on fragile building materials if breakage runs at 1% to 3%. **Recommended:** start with a cap per order (suggested ₦200,000), pay claims from the Fund, review the numbers every quarter, and raise the percentage or lower the cap if the Fund runs short. Until then CHS carries any shortfall. If you prefer that sellers carry all transit risk, the system supports it by changing one setting, but sellers will price it in and may stop using CHS delivery.

9. The money, with real examples

The rules

- The refund is taken from money CHS is already holding. The buyer is credited immediately when CHS approves the decision.
- When the seller is at fault, or CHS is responsible for the transit damage, the buyer's refund is the price of the affected goods, plus CHS's commission from the buyer on those goods, **with no processing fee**. **DECISION:** the existing rule (Term 36) deducts a processing fee of up to ₦2,000. Recommended: waive it when the buyer did nothing wrong. It costs very little and removes a real complaint.
- CHS cancels its own commission on the refunded goods, from both sides. CHS earns nothing on a failed sale (consistent

with Term 36).
- The delivery charge is refunded only when the whole order fails because of the seller or CHS. If only some goods are affected, delivery is not refunded.

Example 1: part of the order is broken (from your test order CHS-BUY-000128)

450 sandcrete blocks at ₦450 = ₦202,500. Buyer's CHS fee 6% = ₦12,150. Seller's CHS fee 4% = ₦8,100. In transit with CHS, 30 blocks arrive broken. The normal allowance is 2%, which is 9 blocks, so **21 blocks** are claimable.

Line	Amount
Price of 21 blocks (21 × ₦450)	₦9,450
CHS's 6% from the buyer on those blocks (CHS gives it back)	₦567
Refund to the buyer's wallet (no processing fee)	**₦10,017**
Intact goods the buyer keeps (429 blocks)	₦193,050
Seller's commission on the intact goods (4%)	₦7,722
Seller receives for the intact goods	₦185,328
Delivery Protection Fund pays the seller for the 21 broken blocks (CHS cancels its fee on them)	₦9,450
Seller's total for this order	**₦194,778**

Check: the buyer paid ₦202,500 + ₦12,150 = ₦214,650 for the goods and fee. After the refund of ₦10,017 the buyer has paid ₦204,633, which is exactly 429 blocks plus the 6% fee on them. If the seller had been at fault instead, the ₦9,450 would not come from the Fund; it would be taken from the seller's held payment.

Example 2: the whole order is wrong (from your test order CHS-BUY-000129)

230 roof ridge caps at ₦3,200 = ₦736,000. Buyer fee 6% = ₦44,160. Delivery share ₦17,950. The seller sent the wrong size. Seller at fault, goods to be returned.

Line	Amount
Price	₦736,000
CHS's 6% from the buyer	₦44,160
Delivery charge (whole order failed)	₦17,950
Refund to the buyer	**₦798,110**
Seller receives for this order	₦0, and no CHS commission is charged
Return transport	Paid by the seller, deducted from what CHS holds or the seller's wallet

Example 3: the seller was already paid part (the 60% advance)

If CHS had released 60% of the seller's share (₦423,936 of ₦706,560) before the claim, the buyer is still refunded in full at once. CHS recovers the ₦423,936 from the seller in this order: money CHS still holds for the seller's other orders, then the seller's wallet, then future payouts. Until it is cleared the seller's new listings are paused. The seller agrees to this in the Terms (section 15).

> **DECISION: advance releases.** The 60% early release is a manual CHS decision. It creates exactly this risk. **Recommended:** do not give an early release on a marketplace order until the claim window (48 hours) has passed, and never to a seller whose claim rate is above 3%.

10. How the admin handles it

Part	Design
Queue	New **Claims** tab under Oversight. Filters: new, waiting for seller, waiting for buyer, needs decision, return in progress, overdue, closed. Every claim shows its timer.
Evidence view	One page per claim: the order, the four moments of evidence in time order, every photo with its server time, both sides' messages, rider and centre statements, and the seller's and buyer's history (claims, upheld, rejected).
Recommendation	The system proposes an outcome from the rules and says why. The admin can agree or overrule; an override needs a written reason.
Decision form	Fault, remedy, units, amounts. A live preview shows exactly what the buyer, seller and CHS will each get before the admin confirms. The confirm step is the same payment confirmation used elsewhere.

Dual control	**DECISION:** claims above ₦500,000 need a second approver (super admin) before money moves. Recommended.
Asking for more	The admin can ask either side for more evidence. The clock pauses until they reply or the extra time ends.
One review	Either party may ask for one review within 7 days, with new evidence, by a different (senior) person. After that the decision is final inside CHS, and Term 8 applies (arbitration or the courts of Kaduna State).
Records	Every action is written to the audit log with who and when to the second. A Claim Decision Notice (PDF) goes to both parties.
Reports	Claims by seller, by category, by fault; time to decide; Delivery Protection Fund balance (in, out, remaining); refund totals; and the claim rate for each seller.

11. Deadlines and what happens if someone is silent

Step	Time	If the time runs out
Buyer reports after delivery	48 h / 7 days	The claim is out of time. CHS may still hear it if the buyer shows a good reason.
Rider waits at the door	15 minutes	The buyer must decide: give the code (accept) or refuse.
Seller replies	48 h (24 h for door refusals)	The claim goes to CHS marked "seller silent". On complete buyer evidence, CHS will normally uphold it.
Buyer answers the seller's offer	48 h	The claim goes to CHS. Silence is never treated as acceptance.
CHS decides	3 working days from complete evidence	The claim is flagged red for a senior admin. Buyer and seller are told it is delayed.
Seller sends the replacement	3 days	CHS may convert it to a refund.
Buyer returns the goods	5 days after the return code is issued	The claim is closed without refund unless the buyer shows a good reason.
Review request	7 days from the decision	The decision stands.

12. Stopping abuse, both ways

- **False or inflated buyer claims:** every claim needs photos stamped by the server. The same photo used twice is detected. A buyer with a high rate of rejected claims is flagged to the admin. Penalties escalate: warning, then claims reviewed more strictly, then restriction, then suspension under Term 9.
- **"Empty box" or swapped goods:** for goods of real value, CHS may require the goods to come back and be inspected before the refund.
- **Sellers who ignore claims or ship poor goods:** a seller's claim rate is tracked. Suggested thresholds: above 3% of orders upheld, a warning and a call; above 5%, listings reviewed; repeated, suspension. A seller cannot be paid for goods under an open claim.
- **Sellers cheating the packing photos:** photos are stamped when uploaded, and the packing photo must be added **before** dispatch can be recorded.
- **Giving the code too early:** the app tells the buyer on every delivery: "Check first, then give the code."
- **Moving the dispute off the platform:** unchanged from today. Contact details in messages are blocked and the deal must stay on CHS (Term 31).

13. Notifications and records

Every state change sends one notification to the people affected, grouped in the same way as the order notifications (one claim, one entry that opens the claim). The events are: claim opened, seller replied, offer made, offer accepted or declined, evidence requested, decision made, refund credited, replacement dispatched, return requested, return received, review requested, claim closed, and each deadline warning (12 hours before it runs out). Notifications never contain the other party's contact details.

14. Settings the admin can change (defaults)

Setting	Default
Rider waits at the door while the buyer inspects	15 minutes

Window to report visible damage, wrong or missing goods	48 hours
Window to report faults that show on use	7 days
Seller reply time (24 hours for door refusals)	48 hours
Buyer reply time to an offer	48 hours
CHS decision time from complete evidence	3 working days
Review request window	7 days
Waive processing fee when the seller or CHS is at fault	Yes
Delivery Protection Fund cap per order	₦200,000
Second approver needed above	₦500,000
Seller claim rate: warning / listing review	3% / 5%
Early release allowed before the claim window ends	No
Packing photos required for fragile categories	Yes
Category rules (breakage allowance, returnable, window)	Table in section 7

15. The Terms: proposed clauses

DRAFT for the barrister. Written in the plain style of the existing Terms. Numbers in brackets are the existing terms affected. This is also added to the Terms V9 draft in the repository.

48. Damaged, defective, wrong or missing goods: claims, returns and refunds

48.1 What this covers. Goods bought on the Marketplace that arrive damaged, do not work, are not what the listing described (wrong item, size, colour, grade, brand or quantity), arrive with items missing, or do not arrive.

48.2 Check before you give the code. When goods are delivered, open and check them before you give the 6-digit delivery code. The rider or driver will wait up to 15 minutes. If something is wrong, do not give the code: refuse the goods and report the problem in the app with photographs straight away. Giving the code confirms that the goods arrived. It does not remove your right to claim for a fault you could not see, within the times in 48.4.

48.3 How to claim. Report the problem in the app, from the order, choosing the reason, the items and how many are affected, adding photographs (and a short video where the app asks for one), and saying what you want: a replacement, a refund or a partial refund. A claim made by phone, message or social media is not a claim under these Terms. Never send money or goods to anyone outside the claims process.

48.4 Time limits. Report visible damage, wrong goods and missing goods within 48 hours after delivery is confirmed, and a fault that only shows when the goods are used within 7 days. CHS may set a different time for a category of goods; it is shown on the listing before you buy. CHS may still consider a late claim where there is a good reason.

48.5 Payment while a claim is open. The money for the affected goods stays held by CHS, and the Seller is not paid for them, until the claim is decided. An order with an open claim cannot be marked as received.

48.6 The Seller's reply. The Seller has 48 hours (24 hours where goods were refused at the door) to accept the claim, offer a different remedy, or dispute it with evidence. If the Seller does not reply, CHS may decide on the evidence it has, which may favour the Buyer.

48.7 CHS decides. Where the parties do not agree, CHS decides after reviewing the evidence, which may include photographs, packing and intake records, and statements from riders, drivers, couriers and CHS centre staff. CHS aims to decide within 3 working days of receiving complete evidence, and gives its reasons. Either party may ask for one review within 7 days of the decision, by a different CHS officer, with any new evidence. After that the decision is final within CHS, and term 8 applies.

48.8 Who is responsible. (a) The Seller is responsible for goods that are defective, not as described, short, badly packed, or damaged before handover, and for damage while the goods are with the Seller's own rider or a courier or carrier the Seller chose. (b) CHS is responsible, up to the limit in 48.15, for damage in transit while the goods are with a CHS collection centre or on delivery arranged by CHS, where the goods were properly packed and accepted without damage. (c) The Buyer is responsible for damage after delivery caused by the Buyer, misuse, ordering the wrong goods, and a change of mind, unless the listing says the Seller accepts returns. (d) Where the evidence does not settle the matter, CHS decides on the proof provided, and a party that did not provide the evidence these Terms ask for may lose that point.

48.9 What you receive. The remedy may be a replacement, a refund, or a partial refund. A refund is the price of the affected goods, plus CHS's commission charged to you on those goods and, where the whole order fails because of the Seller or CHS, the delivery charge. Where the Seller or CHS is responsible, no processing fee is deducted from it [replaces

the fee in term 36 for these cases]. The refund is credited to your CHS Wallet, and CHS does not keep its own commission on goods that are refunded.

48.10 Returns. CHS may require goods to be returned, to the Seller or to a CHS centre, before a refund. A return code is issued, and the cost of return is paid by the party at fault. Keep the goods and their packaging, and do not use, repair or dispose of them until CHS decides, unless they are perishable or dangerous. Goods that cannot sensibly be returned (for example opened cement, mixed paint, cut-to-size or custom goods) are dealt with on photographs.

48.11 Change of mind. There is no right to return goods because you changed your mind, unless the listing says the Seller accepts returns. Where it does, the goods must be unused, in their original packaging, returned within the stated days, and the Buyer pays the return transport.

48.12 Sellers' duties and CHS's right to recover. A Seller must describe goods accurately, pack them properly, photograph the packing where the app asks, answer claims in time, and honour a remedy it accepts or CHS orders. The Seller authorises CHS to take any amount refunded or paid under this term, including any amount already released to the Seller, from money CHS holds for the Seller, the Seller's wallet and the Seller's future payouts, and the Seller owes CHS any shortfall. CHS may pause a Seller's listings while an amount is owed, and may review or suspend a Seller whose claims are repeatedly upheld.

48.13 Riders, drivers, couriers and CHS centres. A Seller who uses its own rider, or a courier it chose, is responsible for them and must make sure they cooperate with a claim. CHS may ask a rider, driver or courier for a short written statement through a link, and may rely on it as evidence. CHS centre staff inspect goods when they take them in and when returns arrive.

48.14 False or abusive claims. A claim or a reply that is knowingly false, a photograph that is not of the goods ordered, or a pattern of unfounded claims, is a breach of these Terms. CHS may reject the claim, restrict claims, or suspend the account under term 9.

48.15 Delivery Protection. The delivery protection charge on an order funds CHS's own undertaking to cover damage in transit as set out in 48.8(b), up to [₦200,000] per order. It is not a contract of insurance and CHS is not an insurer. [Barrister to confirm wording and any regulatory consequence.]

48.16 Records and privacy. Photographs, statements and messages in a claim are kept as part of the record (term 37), may be seen by the parties and, where needed, by the rider or courier concerned, and are not used for any other purpose.

48.17 Your legal rights. Nothing in this term removes a right you have under Nigerian consumer-protection law.

Changes to existing terms

Term	Change
6 (escrow)	Add: money for goods under an open claim stays held until the claim is decided under term 48.
36 (refunds when the other party defaults)	Add a sentence: where a refund follows a claim under term 48 and the Seller or CHS is responsible, no processing fee is deducted.
Marketplace delivery clause	"Delivery and insurance charges are non-refundable once the seller has handed over the goods" becomes "...except as term 48 provides". "A buyer who reports a problem keeps the payment on hold" points to term 48.
31 (marketplace)	Cross-refer to term 48. See the privacy point in section 16 about what the seller can see of the buyer.
Seller / vendor onboarding	The seller accepts term 48 (especially 48.12) when registering or on next login.

16. Points for the barrister

1. **"Insurance" wording.** CHS charges "delivery and transit insurance" but is not an insurer. Is the label, or the Fund, a regulated activity? Should it be renamed "Delivery Protection", or backed by a real insurance policy? (Insurance regulator.)
2. **Consumer protection law.** Whether the Federal Competition and Consumer Protection Act 2018 and any State consumer law require rights beyond term 48 (so that nothing here can be said to remove them), and whether the 48 hour and 7 day windows are defensible.
3. **Implied terms in the sale of goods** (description, quality, fitness) and whether CHS, as a facilitator that holds the money and decides disputes, can be treated as the seller's agent.
4. **Set-off and recovery (48.12).** Whether the Seller's authorisation is enforceable, including recovery of amounts already released.
5. **Limits on CHS's liability** and any cap per order, and whether any exclusion could be an unfair term.
6. **Data protection.** Photographs, rider and driver statements and rider phone numbers under the Nigeria Data Protection Act 2023. Consent and retention.
7. **Evidence.** Weight of electronic records, stamped photographs and no-login statements (Evidence Act 2011, section

84).

8. **Privacy of the buyer.** Term 31 says the vendor sees only a reference number and never the buyer's identity. The new seller order screen shows the buyer's first name and the delivery address, because delivery needs them. Is the Terms wording to be corrected, or the screen reduced?
9. **Review and final decision.** Consistency of the one-review rule with the arbitration and courts clause in term 8.

17. What to build, in what order

Phase	Contents	Result
Done today	A disputed order can no longer be marked received. The seller is told when a problem is reported.	Stops the worst defect.
Phase 1: the core	Claims database and private photo storage. Buyer claim form with photos, item and units, and what they want. A "Report a problem" button that works after delivery too. Seller reply (accept, offer, dispute). Claims queue and decision screen for admin, with exact money preview, partial refund, no processing fee on seller fault, recovery from the seller, and the audit record. All deadlines and silent-party rules. Notifications. Claim Decision Notice PDF. Seller packing photos. The rider statement link. The "check before you give the code" wording.	A complete, working claims process for refunds and partial refunds.
Phase 2: goods move	Replacement shipments with their own code. Returns with a return code, pickup record and inspection. CHS centre intake inspection. Delivery Protection Fund ledger. Seller claim-rate dashboard with automatic flags. Category rules shown on the listing.	Replacement and return, with the Fund and seller discipline.
Phase 3: scale	Recovery from couriers under contract. Duplicate-photo detection. Repeat-claimant analytics. Text or WhatsApp alerts. Rider code or tracking.	Less manual work as volume grows.

18. The decisions I need from you

I will build Phase 1 with the recommended answers unless you change them. All of them are settings, so changing your mind later costs nothing.

#	Decision	Recommended
1	Who pays for transit damage with CHS	CHS Delivery Protection Fund, ₦200,000 cap per order, reviewed quarterly
2	Who pays when the seller's own rider or chosen courier damages goods	The seller
3	Processing fee when the seller or CHS is at fault	Waived
4	Windows	48 hours visible, 7 days faults
5	Change of mind returns	Not offered, unless the seller opts in on the listing
6	Goods returned before refund	For goods of real value and for functional faults; photos only for bulk materials
7	Who approves refunds	Admin approves every refund. Second approver above ₦500,000
8	Early 60% release on marketplace orders	Not before the claim window ends, and never above a 3% claim rate
9	Seller consequences	Warning above 3%, listing review above 5%, suspension for repeat
10	Breakage allowances by category	Table in section 7, to be confirmed with real sellers in Kaduna

Prepared for CHS, 18 October 2026. Companion changes made today: database functions buyer_confirm_received and buyer_report_problem; the buyer's order card; and the Terms V9 draft (new term 48 and the consequential changes).